

BBNJ PREPARATORY COMMISSION 3

INFORMAL ON CLEARING HOUSE MECHANISM

Co-facilitated by Palau and New Zealand

Co-Facilitators' Outcome Document - 2 April

Acknowledging the Consolidated draft study on the technical aspects of the operationalization of the Clearing-House Mechanism under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction;

Taking note of the information provided by IOC-UNESCO for the deliberations of the Commission in relation to the design and development of a prototype Clearing-House Mechanism the Preparatory Commission;

Mindful that the further development and final version of the Clearing-House Mechanism is subject to a decision of the Conference of the Parties, in line with Article 51 of the Agreement, the Preparatory Commission,

1. Decides that the Co-Chairs of the Preparatory Commission, in consultation with the Bureau and with the assistance of the Secretariat, will guide the development of an operational prototype of the Clearing-House Mechanism and report to the first meeting of the Conference of the Parties;
2. Requests that, subject to the availability of resources, the prototype optimally deliver on the functions of the CIHM as articulated by the Agreement, in accordance with Article 51 of the Agreement, as well as paragraph 61 of the draft consolidated study, noting that key functions in the following areas could be implemented in advance of the first meeting of the Conference of the Parties:
 - a. MGR notifications and the BBNJ standardised batch identifier;
 - b. Ability to match capacity building and transfer of marine technology opportunities with interested recipients;
 - c. EIAs notifications; and
 - d. Basic requirements for infrastructure of ABMT
3. Invites expressions of interest by [a timeframe/date to be determined based on guidance from DOALOS - e.g. x weeks after communication of the invitation] to provide technical support for the design and development of a prototype from all those potentially interested, including but not limited to those organisations referenced in Article 51. Such expressions of interest must

include a detailed workplan and costings for design and development of a prototype by COP 1. The Co-Chairs in consultation with the Bureau, with the assistance of the interim secretariat, will invite the best application, in accordance with the principles of openness, transparency and non-discrimination, subject to the availability of resources, to develop a prototype;

4. Decides that the engagement of the [Consultant] will be time-bound up to the first meeting of the Conference of the Parties (COP 1), and that any further development of the CIHM beyond COP1 shall be subject to a decision by the Conference of the Parties, based on its assessment of the prototype and of future operational needs;
5. Requests that the work be undertaken without prejudice to the COP having the power to take decisions on the CIHM as it sees fit; and that the prototype, including all associated technical components, be treated in accordance with UN contracting rules and remain under the management of the Secretariat; and that the [Consultant] cooperate to provide an appropriate transition plan for the prototype, should COP 1 decide not to extend the engagement with the [Consultant];
6. Requests the [Consultant¹] tasked with the design and development of the prototype to take into account the parameters set out in the annex to this Decision, including the specific technical components required to allow the prototype to further develop and evolve over time to deliver on the optimal functions of the fully operational CIHM, if so agreed by the COP;
7. Requests that the [Consultant] consider that the fully operational CIHM must contemplate the functions necessary to support the work of the subsidiary bodies established under the Agreement, including the match making function of the Capacity Building and Transfer of Marine Technology Committee;
8. Requests that the Co-Chairs keep the Preparatory Commission informed on the progress of the development of the prototype, including periodic reporting and stocktakes for consideration;
9. Requests that the [Consultant], under the oversight of the Co-Chairs, Bureau and DOALOS, consult the accredited members of the Preparatory Commission and other potential non-Party users, during the development of the prototype through regular engagement, including, as appropriate, with other relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, as well as Indigenous Peoples and local communities;

¹ The word 'Consultant' is bracketed throughout the draft outcome document pending advice from DOALOS on terminology. Additional suggestions included: Technical Partner, Technical Lead]

10. Requests that, as appropriate, the [Consultant] integrate capacity-building and training components into the consultation process, including through demonstrations, user-oriented guidance and practical training sessions, with a view to enabling Parties to effectively engage with, test and provide informed input on the development of the prototype;
11. Requests that consultations in pursuit of this work be conducted with appropriate transparent, inclusive and equitable safeguards that would preserve the integrity of the process of developing the prototype under the oversight of the Co-Chairs, Bureau and interim Secretariat;
12. Requests the [Consultant] through the Co-Chairs to draft:
 - a. A detailed programme of work, for approval by the Co-Chairs in consultation with the Bureau and for review by Parties, including:
 - i. A consultation plan for the information gathering, usability testing and the delivery of the prototype, in line with paragraphs 9 and 11, noting that the first round of consultations shall be convened with BBNJ national focal points and accredited members of the PrepCom, and broader consultations to be convened periodically with the variety of potential users envisioned by the Agreement, taking into account lessons learned from existing clearing house mechanisms and the diversity of national legal, regulatory and research frameworks; and
 - ii. A schedule of work that includes specific timelines, milestones, and deliverables, including modalities for iterative user-testing and effectiveness checks of the prototype, under continuous oversight of the Co-Chairs;
 - b. A summary report outlining the process toward the development of the prototype, as well as potential issues, gaps and areas requiring further guidance from the Conference of Parties, including recommendations and options for Parties to consider in decision-making, based on user-testing of the prototype and effectiveness evaluations; and
 - c. A work plan including cost estimates for a fully operational version of the Clearing-House Mechanism, taking into account the different design and operational options for the CIHM, including options related to future nodes and indicative costs for the development, operation and maintenance and capacity-building support, to be presented at the first meeting of the Conference of the Parties;
13. Invites and encourages partners from relevant organisations to support both system development and capacity building opportunities;

14. Invites voluntary contributions to fund the development of a prototype and further requests the Co-Chairs, Bureau and interim Secretariat to explore potential funding from the Global Environment Facility and other relevant funding mechanisms, including for the prototype, the central system and the future development of nodes over time.

Annex: Placeholder: Summary of discussions at the 3rd meeting of the Commission based on paragraph 131 of the Consolidated draft study for the development of a prototype only, without prejudice to decisions by the COP

Recognising that the parameters outlined in paragraph 131 of the Consolidated draft study materially affect the infrastructure, architecture, functioning and cost of the Mechanism, and in view of the request to develop an operational prototype of the Mechanism in advance of the first meeting of the Conference of Parties, the following interim guidance is provided to the Consultant/Technical Lead/Project Manager to inform the delivery of tasks:

- **(a) Minimum required metadata fields for each type of records, including defined requirements for MGR notifications, mandatory attachments, and support for assisted or offline submission formats (e.g., Excel or Word);**
 - Article 12, paras. 2, 5 and 8 of the Agreement already stipulate the information that needs to constitute MGR notifications. The prototype must be designed to input these types of data and information, noting that support for offline submission can be facilitated by notifying the Secretariat of items to be uploaded in the interim.
 - However, the technical infrastructure of the prototype should cater for offline submission capabilities in the future.
 - The optimal final version metadata standards should be interoperable with existing national, sub-regional, regional and global, databases.
 - The system should enable access to information on the use, publication, patenting, and marketing of products, as well as on the benefits generated and shared. The [Consultant] shall consider how the system can generate standardized batch identifiers to continuously enable transparent monitoring of marine genetic resources (MGR) and associated information throughout their lifecycle, including subsequent utilisation, including inter alia for the purposes of transparency and reporting.

- The standardised batch identifier should be a globally unique, persistent, identifier that may be linked to patents and utilization, including commercialization.
- There is also the need to ensure accessibility, including low-bandwidth environments and offline submission, noting that support for offline submission can be facilitated by notifying the Secretariat of items to be uploaded in the interim.
- **(b) Definition and governance of confidentiality categories (public, restricted, proprietary and confidential), including criteria for classification and handling;**
 - The prototype can categorise information and data as public, restricted, proprietary or confidential, noting that there will need to be guidance on the classification rules and criteria. This can form part of the study requested of the [Consultant]. Traditional Knowledge and sensitive information should be handled as metadata by default unless otherwise decided by the holder.
 - For the purpose of the prototype, any information that is considered restricted, proprietary or confidential may be redacted as such, with the feature to accompany the submission with a rationale or justification for why it is considered such, in accordance with national law where applicable. There must be a feature for uploaders to indicate the specific category of the data and information being uploaded.
- **(c) User role taxonomy, verification rules, and delegation mechanisms, including whether, and under what conditions, non-Party users may submit information:**
 - The CIHM will have to allow access for different categories of users and different levels of users. National focal points (NFP) could have administrator roles - to verify and approve relevant entities and actors to access and upload to the CIHM. Any submission having official status must originate from an authenticated user linked to an authorised entity.
 - Non-State actors may also need to be entitled to send and to upload information on the CIHM. There should therefore be a registration process managed by the Secretariat with appropriate safeguards based on standard best practice and transparency protocols, including a listing/index of authorised users.
 - General members of the public can have view-only access.
 - The COP can provide further guidance to the Secretariat on managing and monitoring non-party users overtime.

- **(d) TK safeguards, including minimum consent and provenance requirements, access request pathways, and whether TK content may be hosted centrally or referenced through metadata with controlled access pointers.**
 - Traditional knowledge content should be referenced through metadata with controlled access pointers, however for the purpose of the prototype, it should be designed to indicate its category as protected Traditional knowledge, be retrievable via search features, and identity that FPIC approval was obtained, at minimum. Safeguards drawn from best practices should also be applied.
- **(e) Subscription-based alert policy, including applicable geographic triggers, permissible areas of interest, and minimum geospatial data requirements.**
 - The technical infrastructure of the prototype should allow for a subscription-based alert system on the basis of thematic and/or geographical approaches. For example, users can select key activities, themes and issues they would like to be notified of based on geographical location.
 - Users should be able to define for themselves the scope of geographical area that they would like to be alerted of. Keyword tags should also be used to help filter and identify activities, issues and themes users can create/need to be alerted on.
 - For the purpose of the prototype, this can be facilitated by manual search of geographical areas, noting that the technical infrastructure should be designed to include the optimal approach of facilitating geospatial data for the fully operational CIHM.
- **(f) Interoperability priorities, including which external systems are prioritized first and which interoperability modes are authorized.**
 - From the outset, the initial prototype must attempt to link with other systems and clearing houses to test functionality for interoperability. Best scientific practice should be applied to allow for phased interoperability over time. Linkage could be used in the interim while we continue to build out the system and provide guidance on which external systems to make interoperable.

- **(g) Node policy, including whether nodes are endorsed, the applicable oversight and management model, and minimum security and operational standards nodes to be met.**
 - The system will be a central system and should be designed to allow for the future integration of nodes.
 - In terms of the future integration of nodes over time, this should be designed in line with paragraph 112 of the draft consolidated study.
- **(h) Language and translation policy, including which elements must be multilingual, service levels, and the allocation of responsibilities.**
 - The prototype could utilise one working language, i.e. English, however it should be designed with the intention to ensure that the final product and its core workflows utilize the six official UN languages and abides by a clear translation policy for submitting documents.
 - The [Consultant] shall advise on the capacity, resource requirements and technical feasibility of translating all elements of the CIHM, however, at minimum, searching for information in one language should trigger results that may have been submitted in another language.
 - Given the lack of Artificial Intelligence (AI) governance, appropriate software tools and technology should be used for translation purposes, not AI.
- **(i) Minimum cybersecurity baseline and audit requirements, including incident response expectations and data retention policies.**
 - Minimum cybersecurity baseline and audit requirements shall be based on best practices, including the initial list of Voluntary Global Confidence Building Measures included in Annex B of the report A/79/214 provided by the United Nations Open Ended Working Group on security in the use of information and communications technologies 2021–2025 which include inter alia the establishment of a Directory of focal points of contact at the policy, technical and diplomatic level should any incident happen.
- **(j) Accessibility requirements**
 - The fully operational CIHM should be designed to meet the accessibility requirements, including those outlined in paragraphs 67 and 68 of the draft consolidated study, and in line with Article 51 paragraph 5 with full recognition given to the special requirements of developing States

Parties, as well as the special circumstances of small island developing States Parties, and their access to the mechanism.

- The prototype should address these requirements to the extent possible, and indicate options or recommendations for further development in meeting those.

END